New York Weatherization Breathes Easy

In 2001, New York state geared up to adopt DOE's Lead Safe Weatherization (LSW) protocols and come into compliance on all OSHA lead issues. At that time we learned that OSHA's regulation 29 CFR 1926.62 required employers to perform air monitoring and to have employees wear respirators and protective clothing when disturbing lead paint or lead dust. The OSHA regulation clearly applied to the Weatherization program and to our private subcontractors.

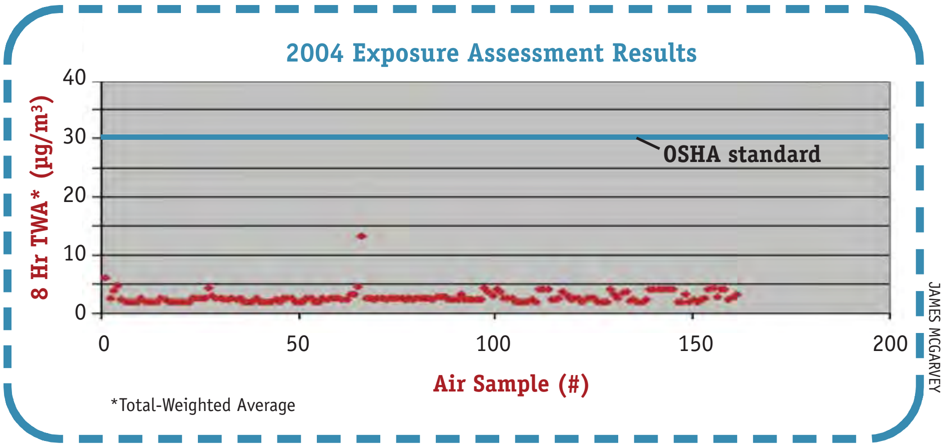

Figure 1. Most of our data for 2004 were at or below 4 mg/m^3, which is the threshold below which the labs cannot measure lead levels in the monitoring canisters.

Before an employer puts respirators on employees, the employer must have medical exams done on those employees to verify that they can work while wearing respirators. In addition, the respirators must be professionally fitted, and the employer must have a written agency respirator policy, along with a training program, in place. Agencies and subcontractors are required to perform air monitoring on all weatherization measures that disturb lead paint or lead dust.

We discovered that performing air monitoring and arranging for the use of respirators was going to be very expensive for our 67 agencies, and our over 100 subcontractors and their employees. In fact, when we did an expense study, we estimated that between medical exams ($122 each), professional fit testing ($27 each), and performing the air monitoring (12 tasks x 10–11 samples @ $6, plus labor @ two hours per sample), these modifications were going to cost thousands of dollars per agency.

Then we learned, from working with ATC Associates, a national environmental training and consulting firm, that there was another option. Employers are not required to perform air monitoring if they have objective industry data proving that the OSHA action level of 30 μg/m^3 averaged over an eight-hour day is not exceeded during a specified work task. This is known as a negative initial determination (NID), and it would relieve our agencies and their subcontractors of performing air monitoring or requiring respirators for weatherization work.

The New York State Division of Housing and Community Renewal (DHCR), which administers the state's Weatherization program, funded the New York State Weatherization Directors Association (NYSWDA) to perform air monitoring for our network. NYSWDA worked closely with ATC and OSHA. Using six agencies around the state, we collected several thousand hours of air monitoring on 12 identified measures (such as cutting and drilling of painted surfaces, removing painted siding, and working on furnaces and ducts) that had the potential of disturbing lead paint or lead dust.

Air monitoring methodologies were based on the OSHA Technical Manual, Section II: "Sampling, Measurement Methods, and Instruments," Chapter 1: "Personal Sampling for Air Contaminants."

Keeping the Numbers Down

As expected, because our LSW practices involve working wet and not creating dust, our numbers came in low, well below the 30 μg/m^3 averaged over eight hours. Figure 1 shows that most of our data for 2004 were at or below 4 μg/m^3, which is the threshold below which the labs cannot measure lead levels in the monitoring canisters. We assumed 4 μg/m^3 to be on the safe side.

NYSWDA's NID demonstrates that when our LSW practices are followed, agencies and private contractors can use our objective data to be in compliance, knowing that they are not exposing their employees to lead dust above the OSHA limits. Thus they do not need to perform their own air monitoring or require respirators for employees who are performing the 12 tasks that we studied. NYSWDA updates the data yearly. The original study was done by Earl Hicks and is being continued by Assistant Director Gary DeWitt. Our Web site has much more information on New York State's NID and on how it can be of use for your agency or your business.

—James McGarvey

James McGarvey is the executive director at NYSWDA.

FOR MORE INFORMATION:

Go to www.nyswda.org/WAPManagement/Lead/Lead1.htm.